

Criminal Misc. No. 13505-B of 2014.

Muhammad Farooq

The State etc.

31.10.2014 Ch. Farooq Haider, Advocate for the petitioner.
Mr. Muhammad Naseem Akhtar, DDPP and Muhammad Imran, ASI along with record for the State.
Mr. Atiq-ur-Rehman, Advocate for the complainant.

Petitioner seeks post arrest bail in case FIR No.203/12 dated 05.09.2012 under sections 302/109/34 PPC Police Station Karrianwala, District Gujrat.

2. Briefly stated the prosecution version as set forth in the FIR is that on 05.09.2012 at about 1:00 p.m, the petitioner along with his co-accused persons put brother in law of the complainant on the ground and one unknown accused made fire, which hit on the head of the deceased and thereafter, the other assailant made fire which hit near left cheek of the victim. Both the assailants fled away on their motorcycle by throwing the victim in the Jungle. Rashid succumbed to the injuries there. The motive behind the occurrence was stated to be a monetary dispute of the deceased with certain persons.

3. Heard and record perused.

4. Admittedly, the petitioner has not been nominated in the FIR. The FIR was lodged against two unknown accused and neither features, descriptions, aged height and complexion of the unknown accused persons were

given by the complainant in the FIR nor the prosecution witnesses have stated a single word in this regard. Whereas after 21 months 14 days, it is stated by the prosecution that the petitioner was identified by the prosecution witnesses during test of identification parade. It is noticed that on 12.06.2014, the Investigating Officer with the help of other police officers apprehended present petitioner while standing in Chowk. It is not mentioned by the I.O that what were the circumstances, in which he arrested present petitioner under section 54 Cr.P.C, when entire file is silent till 12.06.2014. Thereafter, on the same day i.e 12.06.2014, the petitioner allegedly made extra judicial confession upon which the petitioner was sent to judicial lock up on the next day by the order of the learned Judicial Magistrate. Whereas witnesses were summoned for taking part in the test identification parade through call up notice dated 17.6.2014, wherein full particulars of the accused/petitioner were mentioned. Hence, identification parade was held on 19.6.2014 after eight days from date of arrest and after two days from date of summoning witnesses with ample opportunity of having been seen by the complainant and the witnesses. The prosecution has not rendered any explanation in respect of delay in holding identification parade. It is also noticed that at the time of identification parade, the prosecution had not described the role of the petitioner, which was played by him at the time of the incident. Apart from above, the complainant nominated the petitioner as an accused on 20.6.2014 through his supplementary statement, wherein, the complainant had stated that he was not aware about the name of the accused prior to identification parade, which is against record as name of the accused along with his full

particulars were mentioned in the call up notice dated 17.6.2014. The evidentiary value of the identification parade would be determined by the learned trial court after recording of evidence of the parties. In above said circumstances, case of the petitioner falls within the purview of sub section (2) of section 497 Cr.P.C and requires further inquiry.

5. For the reasons supra, the petition is accepted and the petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.2,00,000/- with two sureties each in the like amount to the satisfaction of the learned trial court.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

***Tariq**